



U.S. Department
of Transportation

**Pipeline and
Hazardous Materials
Safety Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

MAY 3 2005

DOT-E 14144

EXPIRATION DATE: November 30, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Lawrence Livermore National Laboratory
Livermore, CA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-way, transportation in commerce of certain lithium hydride, fused solid, in non-specification packages for disposal. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.241 in that non-specification bulk packages are not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of Lawrence Livermore National Laboratory dated January 19, 2005, submitted in accordance with § 107.105 and the public proceeding thereon.

MAY 3 2005

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium hydride, fused solid	4.3	UN2805	PG II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are two (2) non-DOT specification bulk packages fabricated from aluminum as shown on the applicant's drawings on file with the Office of Hazardous Materials Exemptions and Approvals. Each package has a gross weight of approximately 1,900 pounds and is constructed as follows: a diameter of 66 inches; a height of 33 inches; a wall thicknesses of approximately 0.25 inches; and a base plate thickness of approximately 1.5 inches.

b. OPERATIONAL CONTROLS -

(1) Transportation is only authorized one-way for disposal from the Lawrence Livermore National Laboratory, Livermore, CA to Department of Energy's Y-12 plant in Oak Ridge, TN.

(2) Transportation must be by government vehicle with Lawrence Livermore National Laboratory drivers.

(3) Packages must be transported in a fully enclosed transport vehicle.

(4) Packages must be securely blocked and braced during transportation in conformance with the requirements of §§ 393.100 - 393.106.

(5) Lawrence Livermore National Laboratory personnel will monitor the progress of the shipment by cellular telephone.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered for transportation.

MAY 3 2005

b. Each packaging must be marked in accordance with §§ 172.301(c) and 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

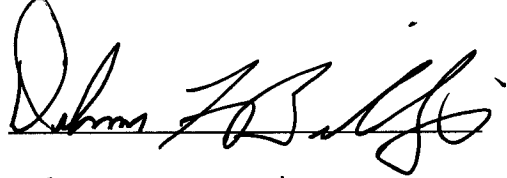
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify

the Associate Administrator for Hazardous Materials Safety - OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.



MAY 3 2005

DATE

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590.

Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DBurger